Doctrine Bulletin:
Law Enforcement at Red Cross-Managed Shelters

Purpose

This bulletin provides guidance for Red Cross Shelter Site Managers and other members of the Red Cross workforce encountering and working with law enforcement at Red Cross shelters.

Procedures

Working with Law Enforcement During Shelter Operations

The American Red Cross provides shelter in accordance with our Fundamental Principles and Core Values and applicable law, while making sure that our shelters are free and safe from criminal activities and violence. Law enforcement agencies are important partners that help the Red Cross fulfill its sheltering mission by addressing safety and security issues in a variety of ways.

There are situations, however, in which the presence, location, and actions of uniformed officers may negatively impact the sense of security of disaster survivors who do not wish to interact with law enforcement, and who are not the subject of a valid arrest warrant, that may result in limiting access to or denial of disaster relief services. We believe that through open communication and mutual respect, law enforcement agencies and the Red Cross can accomplish our respective missions together.

There may be situations where the Shelter Site Manager and law enforcement officers cannot reach an agreement. In these cases, the Shelter Site Manager:

- Politely explains that they are following Red Cross guidelines;
- Offers to connect the law enforcement with a manager at DRO Headquarters immediately;
- Under no circumstances should a Shelter Site Manager (or any other member of the Red Cross workforce) be verbally disrespectful or rude or attempt to physically obstruct a law enforcement officer.
    - Any verbal or physical altercation with law enforcement must be reported as soon as possible to DRO Headquarters and the DOCC.

Greeting Law Enforcement Officers Arriving at Shelters and Work Sites

All encounters with and requests from law enforcement officers will be supervised by the Shelter Site Manager or Site Manager on duty. When law enforcement officers arrive at any work site (including shelters), summon the Site Manager at once to meet them.

Site Managers must balance:

- **Appropriate cooperation with law enforcement officers** to ensure the safety of disaster survivors and members of the workforce with

- **The need to ensure that no one will be hesitant to visit our shelters** and work sites to receive needed shelter, food, water, health services, emergency supplies, financial assistance, or other humanitarian care.

Public and Private Areas of Shelters

Shelter residents have a reasonable expectation of privacy when staying in our dormitories.

- Post clear dormitory access signage at all entrance points of the dormitory areas of Red Cross-managed shelters to distinguish them from the public areas of the shelter (typically the lobby and registration area).
- Please see the Shelter Signage Instructions document for instructions for sign sizes and hanging instructions. To ensure shelter residents privacy and dignity, Red Cross-managed shelters should restrict dormitory access to shelter residents, shelter workers, and authorized partners.

Access to Public Areas of Shelters

Anyone who needs Red Cross services and is respectful of others is welcome in the public areas of shelters.

Access to Private Areas of Shelters

Generally, Shelter Site Managers should not consent to law enforcement entering the dormitory area of a shelter unless at least one of the following exceptions occurs:

- Conducting a walk-through of the shelter when requested by the Red Cross or facility owner to assess the safety and security of the environment;
- Responding when a Shelter Site Manager suspects that criminal activity is occurring in the shelter and requests assistance;
- Responding to actual or threatened violence in a shelter;
- Responding when the Red Cross becomes aware that a person who is required to register with a government agency (e.g., a registered sex offender) is present in a shelter;
- Helping the Red Cross reunite an unaccompanied child with the child's family;
- Assisting clients who need a safe location to store their firearm/weapon and do not have a car or other storage location;
- When a law enforcement officer comes to a shelter with a valid judicial warrant[1] to search the shelter premises and/or for the arrest of a person in the dormitory; or

[1] A judicial warrant is a formal written order issued by a state or federal court authorizing a law enforcement officer to make an arrest, a seizure, or a search. A judicial warrant must be signed by a judge or magistrate judge to be effective.

An administrative warrant is a formal written document authorizing a law enforcement officer to make an arrest or a seizure and can be signed by an "immigration judge" or an "immigration officer." Unlike a judicial warrant, an administrative warrant does not authorize law enforcement to conduct a search.

- When a border patrol agent arrives at a shelter located within 25 miles of any United States geographic border (including any coastline).

Requests to Consent to Warrantless Searches During Shelter Operations

Shelter management and staff do not have authority to consent to warrantless searches.

- If a law enforcement officer requests to search a shelter or Red Cross books, records, or databases without a warrant, the Shelter Site Manager should **politely explain that authority to consent rests solely with the DRO Director (if the shelter is part of a DRO) or with the Regional Executive (if the shelter is not part of a DRO), and offer to contact the appropriate Red Cross official**.
- The DRO Director works with their operations management chain, the Office of General Counsel, and Office of Investigations, Compliance and Ethics to resolve the matter.

Responding to a Search Warrant

The Red Cross is committed to fully complying and cooperating with any law enforcement officer who presents a valid judicial warrant.

- If law enforcement presents a judicial warrant to shelter reception, notify the Site Manager immediately.
- **Shelter reception or the Site Manager should confirm the identities of each of the officers and other individuals executing the warrant:** ask to see their agency photo identification cards or business cards and record the names and badge numbers of each officer (do not attempt to photograph badges or official identification cards).
- **The Site Manager should ask for the search warrant from the officer in charge and to take a photo of each page of the search warrant**, including the scope of search, which is the list of items and materials for which the officers are searching.
    - The Site Manager should have an assistant accompanying them, who takes down notes and keeps a written record of decisions as well as key statements made during the execution of the warrant.
    - The Site Manager should reassure the officer in charge that there is no intent to delay or impede the search.
- **The Site Manager should first confirm that the warrant is a judicial warrant by confirming that the warrant was issued by a state or federal court and signed by a judge or magistrate**.
    - If the provided warrant is not signed by a state or federal judge, law enforcement does not have legal authority to conduct a search of the premises.
    - The Site Manager should, therefore, search the presented warrant for a state or federal judge's signature.
    - If law enforcement presents a warrant that has not been signed by a judge, the Site Manager should politely inform law enforcement that the warrant does not authorize a search.

    - If law enforcement proceeds with the search, the Site Manager should inform law enforcement that the Red Cross does not consent to it and escalate the issue to the HQ Sheltering Manager.

- **The Site Manager should carefully review the search warrant, particularly the scope of search** to determine exactly what areas are to be searched and which items are to be seized.
- If an officer asks permission to enter an area or access or obtain documents or other items either without a warrant or outside the scope of the search under the warrant (meaning the officer seeks consent to expand the search), politely yet firmly decline.
    - If the officer persists, the Site Manager should not try to impede the search but should respond by indicating that if the officer proceeds as requested, it will be without the Red Cross's permission or consent.
    - Escorts should not provide speculative answers or volunteer information that has not been asked for.
- **The Site Manager must carefully observe how the officer in charge writes up the inventory of items seized**, specifically regarding the electronic databases and storage devices.
    - Object if these materials are described inaccurately in the inventory.
    - Any items seized that are listed in the inventory created during the search, and the receipt given to the person from whom they were seized, are the items to which the Red Cross is legally entitled once the search and any enforcement actions taken as a result have been concluded.
    - The Site Manager should review the receipt to ensure its completeness and accuracy.
    - If the seizure of certain items has been objected to earlier, because they appear to fall outside the scope of the warrant, ask that these objections be reflected on the receipt for these specific items.

Sex Offenders in Shelters

Several interests are balanced when a registered sex offender arrives at a shelter—the Red Cross nondiscriminatory humanitarian mission, the need to safeguard the public in shelters, and the unique legal status of sex offenders. Workers inform the Shelter Site Manager of all clients who self-identify that they are required by law to register with any state or local government agency during the client registration process.

- The Shelter Site Manager will notify the HQ Sheltering Manager.
- All conversations and interactions with individuals are confidential and should preserve the dignity of the client.
- Advise the client that Red Cross policy requires notification of local law enforcement in such situations.
- If the individual chooses to remain at the shelter, notify shelter security personnel (if present), local law enforcement, and the HQ Sheltering Manager.

    - Request that law enforcement respond to the request as quickly as possible to provide guidance on local laws regarding sheltering sex offenders.
- The individual should confine their activities to a specific area at the shelter that is separate from the remaining shelter population until law enforcement arrives at the shelter.

If the law permits the registered sex offender to remain in the shelter, the individual should stay in an area separate from the other clients. Law enforcement should provide guidance on how to ensure safety at the shelter.

Source: Sheltering Standards and Procedures

Requests For Information About Shelter Residents

Generally, the Red Cross discloses information about shelter residents to law enforcement only if necessary to avert a threat or protect the health or safety of shelter residents, another person, or the community.

- **Record and store shelter resident information only in the Shelter Client Information Application (SCIA) or RC Care, which are the official systems of record for shelter resident data.** *Red Cross shelter workers are not authorized to collect, record, or store shelter resident data in any other way unless a DRO Director makes an exception for exigent circumstances,* (This authority cannot be delegated).
- On occasion, a law enforcement officer will request the names and other identifying information of shelter clients. **In general, the Red Cross considers shelter client information to be confidential,** and we do not share individual or aggregate information about shelter residents with law enforcement officials unless such information is within the scope of a judicial warrant.
- Without sharing confidential information, however, **Red Cross shelter workers can and should help law enforcement officers find missing persons, reunite families, identify sex offenders, and accomplish other activities** provided they are consistent with the Red Cross mission.
    - For example, if a law enforcement officer provides the name of a person they are seeking to reunite a family, a Red Cross worker reviews SCIA, and if the requested person is present, asks the person to identify themselves to the officer.

Law Enforcement Presence or Activity in the Immediate Vicinity of Shelters

There is no “bright line rule” for law enforcement presence in the immediate vicinity of shelters. While the presence of a uniformed officer and/or marked law enforcement vehicles near the entrance of a shelter or law enforcement pre-registering or screening clients attempting to enter shelters may make some shelter residents feel safe, these actions can also cause some disaster survivors in need to be hesitant to visit the shelter and receive humanitarian care.

Shelter Site Managers encountering these situations should notify the HQ Sheltering Manager to seek guidance. **Solutions like periodic patrols rather than persistent presence or limited periods of persistent presence may meet the needs of all concerned.**

Escalating Other Issues, Concerns, or Conflicts with Law Enforcement Officers

If a Shelter Site Manager encounters any other issue not covered by this Doctrine Bulletin involving federal, state, local, or tribal law enforcement, or has concerns or conflicts arising from encounters with law enforcement officers while delivering Red Cross mission:

1. The Shelter Site Manager on duty will immediately notify the DRO Director.
2. The DRO Director will attempt to stabilize the situation
3. The DRO Director will then immediately notify the Red Cross official to whom they report in the operational management chain.

Additional Resources

- Sheltering Standards and Procedures
- Operating a Shelter Checklist

Questions

For further information, please contact sheltering@redcross.org.